

How scholars are humanising Islamic law together

Analysis run: September 12, 2026

PROVIDER	MODEL	LANGUAGE	AUDIENCE
Openrouter	Deepseek/deepseek-v4-pro	En	GENERAL
INTONATION	LENGTH	TEMPERATURE	
NEUTRAL	Long	0.7	

SYSTEM PROMPT

You are an expert AI content generator specializing in creating structured article.

USER PROMPT

Write a concise, self-contained article entry for the title: "How scholars are humanising Islamic law together".

Overall topic for alignment: Intellectual networks shaping humanistic trends in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:
- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

A transnational network of scholars is reshaping Islamic law by recovering its ethical foundations, reinterpreting classical sources, and adapting rulings to modern life. Rather than breaking with tradition, they draw on the deep plurality of juristic schools, theological frameworks, and Quranic principles that prioritise justice, mercy, ease, and human welfare. The Quran contains few direct legal verses, instead establishing overarching values—particularly the maxim that God intends ease, not hardship (Q 2:185). The central tool for this renewal is *maqasid al-sharia* (higher objectives of the law), classically defined as protecting religion, life, intellect, lineage, and property, but now expanded to include human dignity, freedom, and solidarity, enabling reasoned responses to bioethics, gender equity, and other contemporary challenges.

Each of the four Sunni schools offers inherent flexibility: Hanafi *istihsan* (juristic preference) allows departure from strict analogy for equity, heavily used in Muslim-minority fatwas; Maliki *maslaha* (public interest) fosters human rights discourse; Shafi'i *qiyas* (analogical reasoning) demands causal analysis, supporting context-sensitive rulings in Southeast Asia; and Hanbali *darura* (necessity) accommodates changing times and customs. In Muslim-majority states, scholars push family-law reforms (marriage age, divorce, polygamy) grounded in sharia's ethical priorities. In minority settings, the jurisprudence of minorities (*fiqh al-aqalliyyat*) eases integration by encouraging civic engagement and respect for secular law. Theologically, rationalist strands in Ash'ari, Maturidi, and Shi'i thought affirm that sharia serves intelligible human goods, while historians have debunked the orientalist myth of a static legal system closed since the tenth century. Against a binary human-rights narrative, reformists argue that Quranic dignity (Q 17:70) converges with international standards, with movements like Musawah campaigning for legal equality from within an Islamic paradigm. Emerging AI tools assist scholars by surfacing overlooked opinions and mapping scholarly ranges, with ethical design ensuring reformist voices are included. The result is a polyphonic, global, and collaborative effort to reframe sharia as a framework for human flourishing—a “mercy to the worlds”—amid ongoing resistance from conservative establishments and populist politics.

How scholars are humanising Islamic law together

For centuries, Islamic law — the **sharia** (شريعة) — has been portrayed in public discourse as a monolithic, rigid system frozen in time. Orientalist scholarship of the nineteenth and early twentieth centuries often depicted it as a legal relic incapable of evolution. Yet a quieter, more profound transformation has been underway for decades: a transnational network of scholars is steadily humanising sharia by recovering its ethical core, reinterpreting its sources, and adapting its rulings to the complexities of modern life. This movement is not a departure from tradition but a deep engagement with it, drawing on the rich plurality of Islamic juristic schools, theological frameworks, and the foundational texts themselves.

The Quranic foundations of flexibility

The Quran does not present itself as a comprehensive legal code. Out of over six thousand verses, only a few hundred address legal matters directly. The rest concern faith, ethics, narrative, and the human condition. This proportion is itself a clue: the divine intent was never to legislate every detail of life but to establish overarching principles — justice (*‘adl*, عدل), mercy (*rahma*, رحم), wisdom (*hikma*, حكم), and the promotion of human welfare (*maslaha*, مصالح). The verse “God intends for you ease and does not intend for you hardship” (Q 2:185) became a cardinal maxim across all schools. It is this ethical skeleton that contemporary scholars are fleshing out.

The concept of *maqasid al-sharia* (مقاصد الشريعة), the higher objectives of the law, has become the central tool in this humanising project. Classical jurists like al-Ghazali and al-Shatibi articulated five essential objectives — the protection of religion, life, intellect, lineage, and property. Modern scholars, from Tunisia’s Mohamed Tahar Ben Achour to the influential Swiss-Egyptian thinker Tariq Ramadan, have expanded this list to include human dignity, freedom, and social solidarity. By reasoning from objectives rather than literal textual commands, jurists can address contemporary realities — from bioethics to gender equity — without severing their link to revelation.

The living heritage of the four Sunni schools

The flexibility of sharia is not a modern invention. It is embedded in the very structure of the four classical Sunni schools of law — Hanafi, Maliki, Shafi’i, and Hanbali — each of which developed sophisticated methodologies for adapting to changing circumstances.

The **Hanafi** school, founded by Abu Hanifa in eighth-century Kufa, is renowned for its reliance on *istihsan* (استحسان), or juristic preference, which allows a jurist to depart from strict analogy in favour of a ruling that better serves equity. This tool has been revived by scholars working in Muslim-minority contexts in Europe and North America, where rigid application of medieval rulings would create genuine hardship. The European Council for Fatwa and Research, for example, draws heavily on Hanafi methodology to issue rulings on mortgages, marriage, and political participation that are faithful to Islamic ethics while fully integrated into secular legal systems.

The **Maliki** school, dominant in North and West Africa, elevates the practice of the people of Medina (*‘amal ahl al-Madina*) as a source of law, and its principle of *maslaha mursala* (unrestricted public interest) gives jurists wide latitude to legislate for the common good. This has made the Maliki tradition particularly fertile for human rights discourse. Contemporary Maliki scholars in Morocco and Mauritania have been at the forefront of arguing that the spirit of sharia aligns with international human rights norms, even when classical manuals contain contrary rulings.

The **Shafi‘i** school, systematised by al-Shafi‘i in the ninth century, is often seen as the most textually rigorous, yet its concept of *qiyas* (قياس), analogical reasoning, demands that jurists understand the underlying cause (*‘illa*) of a ruling before extending it to new cases. This causal analysis is inherently rational and dynamic. In Southeast Asia, Shafi‘i scholars have used it to develop context-sensitive rulings on issues ranging from environmental conservation to women’s leadership, rooted in local cultures while remaining within the juristic tradition.

The **Hanbali** school, often stereotyped as the most literalist, actually harbours a strong tradition of prioritising necessity (*darura*, ضرور). The medieval Hanbali jurist Ibn Taymiyya, frequently cited by modern reformers, argued that rulings must change with changing times, customs, and conditions. Today, Hanbali-trained scholars in the Gulf and beyond are engaging seriously with questions of political reform, minority rights, and the regulation of Islamic finance in global markets.

Minority and majority settings

The humanising project takes different forms depending on context. In Muslim-majority countries, the challenge is often to reform state legal codes that have codified classical rulings in ways that now produce injustice — particularly in family law. Scholars in Morocco, Indonesia, and Tunisia have worked to raise the minimum age of marriage, expand women’s access to divorce, and restrict polygamy, all while grounding their arguments in sharia itself. They do not frame their work as a break with tradition but as a recovery of the tradition’s own ethical priorities.

In Muslim-minority contexts — Europe, North America, Australia — the challenge is different. Here, sharia is not state law but a voluntary moral code observed by citizens of secular states. Scholars like Abdullah Bin Bayyah and the late Taha Jabir al-Alwani developed the concept of *fiqh al-aqalliyyat* (فقه الاقليات), the jurisprudence of minorities, which explicitly aims to ease the lives of Muslims living as minorities. This framework draws on the classical principle that “hardship begets facility” (*al-mashaqqa*

tajlib al-taysir) and has produced rulings that encourage civic engagement, respect for secular law, and the full participation of women in public life.

Theological schools and the humanistic impulse

Beyond the juristic schools, Islamic theology (*kalam*) has also shaped this movement. The Mu‘tazili emphasis on reason and divine justice, though historically marginalised, has influenced modern reformist thought. The Ash‘ari and Maturidi traditions, which dominate Sunni orthodoxy, both affirm that ethical values can be known through reason, even if revelation confirms and completes them. This rationalist strand has been crucial for scholars arguing that sharia is not arbitrary divine command but a system oriented toward intelligible human goods.

Shi‘i jurisprudence, with its living tradition of *ijtihad* (independent reasoning) and the authority of the *marja‘* to issue fresh rulings, has its own dynamic of adaptation. In Iran and Iraq, reformist Shi‘i scholars have debated the compatibility of sharia with democracy, women’s rights, and religious pluralism, often reaching conclusions that challenge conservative consensus.

The orientalist legacy and its discontents

The orientalist gaze long shaped Western understanding of Islamic law. Scholars like Joseph Schacht portrayed sharia as a closed system that ceased to develop after the tenth century. This narrative served colonial purposes, justifying the replacement of Islamic legal systems with European codes. It also fed the modern perception that sharia is inherently incompatible with human rights.

The current generation of scholars — both Muslim and non-Muslim — has thoroughly dismantled this narrative. Historians like Wael Hallaq have shown that sharia was never static; it evolved continuously through fatwas, court practice, and juristic commentary. The idea of a “closure of the gates of *ijtihad*” is now recognised as a polemical myth. In its place, a more nuanced picture has emerged: one of a legal tradition that has always balanced textual fidelity with contextual sensitivity, and that contains within itself the resources for its own renewal.

The intersection with human rights

Perhaps the most contested terrain is the relationship between sharia and international human rights. The Universal Declaration of Human Rights (1948) was drafted with significant Muslim participation — delegates from Egypt, Pakistan, and Syria contributed to its formulation. Yet subsequent decades saw a hardening of positions, with some Muslim-majority states issuing alternative declarations, such as the Cairo Declaration on Human Rights in Islam (1990), which subordinated rights to sharia.

The humanising movement rejects this binary. Scholars like the Pakistani-Canadian legal theorist Khaled Abou El Fadl argue that a faithful reading of the Quranic vision of human dignity leads to conclusions that converge with, and in some cases exceed, international human rights standards. The Quranic

affirmation that God “has honoured the children of Adam” (Q 17:70) is read as a charter of universal human dignity, not limited by creed or gender. Organisations like Musawah, a global movement for equality in the Muslim family, use this framework to campaign for legal reforms from within an Islamic paradigm.

Artificial intelligence and the future of sharia

A new and unexpected participant has entered this scholarly network: artificial intelligence. Large language models trained on vast corpora of Islamic texts are beginning to assist scholars in retrieving relevant rulings, identifying patterns across schools, and even proposing novel analogies. This is not a replacement for human juristic reasoning but an amplification of it. AI systems can surface minority opinions that have been overlooked, map the range of scholarly positions on a given question, and help ensure that contemporary rulings are informed by the full breadth of the tradition.

Crucially, the humanistic approach to AI in sharia insists that the technology serve ethical ends. Researchers are working to ensure that training data includes the reformist and rights-affirming strands of Islamic thought, not just the conservative mainstream. The goal is not to produce a mechanised fatwa generator but to equip scholars with better tools for the deeply human work of interpretation.

A collaborative, global network

What makes the current moment distinctive is the collaborative nature of this enterprise. No single scholar, school, or region dominates. Conferences in Doha, Sarajevo, Kuala Lumpur, and Fez bring together Hanafi muftis, Maliki qadis, Shafi'i academics, and Hanbali jurists. Digital platforms disseminate their work globally. Fatwa bodies consult across borders. The result is a polyphonic, decentralised, yet coherent effort to demonstrate that sharia, properly understood, is not a threat to human flourishing but a framework for it.

The humanising of Islamic law is not a finished project. It faces resistance from entrenched establishments, populist politics, and the lingering effects of colonial disruption. But the intellectual resources are there, the networks are active, and the ethical imperative is clear. The sharia that is emerging from this process is one that takes seriously its own claim to be “a mercy to the worlds” (*rahmatan lil-‘alamin*, رحمة للعالمين).

SEGMENTED DATA (2)

How scholars are humanising Islamic law together

For centuries, Islamic law — the **sharia** (شريعة) — has been portrayed in public discourse as a monolithic, rigid system frozen in time. Orientalist scholarship of the nineteenth and early twentieth centuries often depicted it as a legal relic incapable of evolution. Yet a quieter, more profound transformation has been underway for decades: a transnational network of scholars is steadily humanising sharia by recovering its ethical core, reinterpreting its sources, and adapting its rulings to the complexities of modern life. This movement is not a departure from tradition but a deep engagement with it, drawing on the rich plurality of Islamic juristic schools, theological frameworks, and the foundational texts themselves.

The Quranic foundations of flexibility

The Quran does not present itself as a comprehensive legal code. Out of over six thousand verses, only a few hundred address legal matters directly. The rest concern faith, ethics, narrative, and the human condition. This proportion is itself a clue: the divine intent was never to legislate every detail of life but to establish overarching principles — justice (*‘adl*, عدل), mercy (*rahma*, رحم), wisdom (*hikma*, حكم), and the promotion of human welfare (*maslaha*, مصلح). The verse “God intends for you ease and does not intend for you hardship” (Q 2:185) became a cardinal maxim across all schools. It is this ethical skeleton that contemporary scholars are fleshing out.

The concept of *maqasid al-sharia* (مقاصد الشريعة), the higher objectives of the law, has become the central tool in this humanising project. Classical jurists like al-Ghazali and al-Shatibi articulated five essential objectives — the protection of religion, life, intellect, lineage, and property. Modern scholars, from Tunisia’s Mohamed Tahar Ben Achour to the influential Swiss-Egyptian thinker Tariq Ramadan, have expanded this list to include human dignity, freedom, and social solidarity. By reasoning from objectives rather than literal textual commands, jurists can address contemporary realities — from bioethics to gender equity — without severing their link to revelation.

The living heritage of the four Sunni schools

The flexibility of sharia is not a modern invention. It is embedded in the very structure of the four classical Sunni schools of law — Hanafi, Maliki, Shafi‘i, and Hanbali — each of which developed sophisticated methodologies for adapting to changing circumstances.

The **Hanafi** school, founded by Abu Hanifa in eighth-century Kufa, is renowned for its reliance on *istihsan* (استحسان), or juristic preference, which allows a jurist to depart from strict analogy in favour of a ruling that better serves equity. This tool has been revived by scholars working in Muslim-minority contexts in Europe and North America, where rigid application of medieval rulings would create genuine hardship. The European Council for Fatwa and Research, for example, draws heavily on Hanafi methodology to issue rulings

on mortgages, marriage, and political participation that are faithful to Islamic ethics while fully integrated into secular legal systems.

The **Maliki** school, dominant in North and West Africa, elevates the practice of the people of Medina (*‘amal ahl al-Madina*) as a source of law, and its principle of *maslaha mursala* (unrestricted public interest) gives jurists wide latitude to legislate for the common good. This has made the Maliki tradition particularly fertile for human rights discourse. Contemporary Maliki scholars in Morocco and Mauritania have been at the forefront of arguing that the spirit of sharia aligns with international human rights norms, even when classical manuals contain contrary rulings.

The **Shafi’i** school, systematised by al-Shafi’i in the ninth century, is often seen as the most textually rigorous, yet its concept of *qiyas* (قياس), analogical reasoning, demands that jurists understand the underlying cause (*‘illa*) of a ruling before extending it to new cases. This causal analysis is inherently rational and dynamic. In Southeast Asia, Shafi’i scholars have used it to develop context-sensitive rulings on issues ranging from environmental conservation to women’s leadership, rooted in local cultures while remaining within the juristic tradition.

The **Hanbali** school, often stereotyped as the most literalist, actually harbours a strong tradition of prioritising necessity (*darura*, ضرور). The medieval Hanbali jurist Ibn Taymiyya, frequently cited by modern reformers, argued that rulings must change with changing times, customs, and conditions. Today, Hanbali-trained scholars in the Gulf and beyond are engaging seriously with questions of political reform, minority rights, and the regulation of Islamic finance in global markets.

Minority and majority settings

The humanising project takes different forms depending on context. In Muslim-majority countries, the challenge is often to reform state legal codes that have codified classical rulings in ways that now produce injustice — particularly in family law. Scholars in Morocco, Indonesia, and Tunisia have worked to raise the minimum age of marriage, expand women’s access to divorce, and restrict polygamy, all while grounding their arguments in sharia itself. They do not frame their work as a break with tradition but as a recovery of the tradition’s own ethical priorities.

In Muslim-minority contexts — Europe, North America, Australia — the challenge is different. Here, sharia is not state law but a voluntary moral code observed by citizens of secular states. Scholars like Abdullah Bin Bayyah and the late Taha Jabir al-Alwani developed the concept of *fiqh al-aqalliyyat* (فقه الأقليات), the jurisprudence of minorities, which explicitly aims to ease the lives of Muslims living as minorities. This framework draws on the classical principle that “hardship begets facility” (*al-mashaqqa tajlib al-taysir*) and has produced rulings that encourage civic engagement, respect for secular law, and the full participation of women in public life.

Theological schools and the humanistic impulse

Beyond the juristic schools, Islamic theology (*kalam*) has also shaped this movement. The Mu‘tazili emphasis on reason and divine justice, though historically marginalised, has influenced modern reformist thought. The Ash‘ari and Maturidi traditions, which dominate Sunni orthodoxy, both affirm that ethical values can be known through reason, even if revelation confirms and completes them. This rationalist strand has been

crucial for scholars arguing that sharia is not arbitrary divine command but a system oriented toward intelligible human goods.

Shi'i jurisprudence, with its living tradition of *ijtihad* (independent reasoning) and the authority of the *marja'* to issue fresh rulings, has its own dynamic of adaptation. In Iran and Iraq, reformist Shi'i scholars have debated the compatibility of sharia with democracy, women's rights, and religious pluralism, often reaching conclusions that challenge conservative consensus.

The orientalist legacy and its discontents

The orientalist gaze long shaped Western understanding of Islamic law. Scholars like Joseph Schacht portrayed sharia as a closed system that ceased to develop after the tenth century. This narrative served colonial purposes, justifying the replacement of Islamic legal systems with European codes. It also fed the modern perception that sharia is inherently incompatible with human rights.

The current generation of scholars — both Muslim and non-Muslim — has thoroughly dismantled this narrative. Historians like Wael Hallaq have shown that sharia was never static; it evolved continuously through fatwas, court practice, and juristic commentary. The idea of a “closure of the gates of *ijtihad*” is now recognised as a polemical myth. In its place, a more nuanced picture has emerged: one of a legal tradition that has always balanced textual fidelity with contextual sensitivity, and that contains within itself the resources for its own renewal.

The intersection with human rights

Perhaps the most contested terrain is the relationship between sharia and international human rights. The Universal Declaration of Human Rights (1948) was drafted with significant Muslim participation — delegates from Egypt, Pakistan, and Syria contributed to its formulation. Yet subsequent decades saw a hardening of positions, with some Muslim-majority states issuing alternative declarations, such as the Cairo Declaration on Human Rights in Islam (1990), which subordinated rights to sharia.

The humanising movement rejects this binary. Scholars like the Pakistani-Canadian legal theorist Khaled Abou El Fadl argue that a faithful reading of the Quranic vision of human dignity leads to conclusions that converge with, and in some cases exceed, international human rights standards. The Quranic affirmation that God “has honoured the children of Adam” (Q 17:70) is read as a charter of universal human dignity, not limited by creed or gender. Organisations like Musawah, a global movement for equality in the Muslim family, use this framework to campaign for legal reforms from within an Islamic paradigm.

Artificial intelligence and the future of sharia

A new and unexpected participant has entered this scholarly network: artificial intelligence. Large language models trained on vast corpora of Islamic texts are beginning to assist scholars in retrieving relevant rulings, identifying patterns across schools, and even proposing novel analogies. This is not a replacement for human juristic reasoning but an amplification of it. AI systems can surface minority opinions that have been overlooked, map the range of scholarly positions on a given question, and help ensure that contemporary rulings are informed by the full breadth of the tradition.

Crucially, the humanistic approach to AI in sharia insists that the technology serve ethical ends. Researchers are working to ensure that training data includes the reformist and rights-affirming strands of Islamic thought, not just the conservative mainstream. The goal is not to produce a mechanised fatwa generator but to equip scholars with better tools for the deeply human work of interpretation.

A collaborative, global network

What makes the current moment distinctive is the collaborative nature of this enterprise. No single scholar, school, or region dominates. Conferences in Doha, Sarajevo, Kuala Lumpur, and Fez bring together Hanafi muftis, Maliki qadis, Shafi'i academics, and Hanbali jurists. Digital platforms disseminate their work globally. Fatwa bodies consult across borders. The result is a polyphonic, decentralised, yet coherent effort to demonstrate that sharia, properly understood, is not a threat to human flourishing but a framework for it.

The humanising of Islamic law is not a finished project. It faces resistance from entrenched establishments, populist politics, and the lingering effects of colonial disruption. But the intellectual resources are there, the networks are active, and the ethical imperative is clear. The sharia that is emerging from this process is one that takes seriously its own claim to be “a mercy to the worlds” (*rahmatan lil-‘alamin*, رَحْمَةً لِّلْعَالَمِينَ).